

Central to the machinery of government laid down by the Constitution was the concept of parliament that had evolved over centuries in England. With the development of the cloth industry and emergence of a new merchant class in the 15th century, widening prosperity had meant more people had a stake in how kings and lords operated, especially in the way they raised money from taxation.

The population's demands for a say in government had reached a pinnacle in the English Civil War in the 1640s, when Charles I, accused of waging war on his people, was executed by the will of Parliament. The subsequent republic of the Commonwealth under Oliver Cromwell soon collapsed, and the monarchy was restored in 1660, but the turbulent period had sowed the seeds of democracy and the shift of power from the king toward Parliament. This was reinforced in 1689, after the Glorious Revolution, when the Catholic king James II was compelled to abdicate and William and Mary from Holland were invited to rule on condition that they accepted a Declaration of Rights. Translated by Parliament into a Bill of Rights, it formally set

“Whenever any Form of Government becomes destructive . . . it is the Right of the People to alter or to abolish it, and to institute new Government.

US Declaration of Independence

down the rights and liberties of British subjects and was a model for the later US Bill of Rights.

Enlightened thinking

The leading framers of the Constitution were highly educated men. They were deeply aware of new currents in philosophical and political thought that had developed in Europe during the Enlightenment, particularly the ideas of John Locke in England and Jean-Jacques Rousseau and Charles Montesquieu in France. Both Locke and Rousseau argued strongly for people's natural

rights, while Montesquieu proposed a separation of legislative, judicial, and executive powers to prevent the despotism he abhorred in the French monarchy. Locke had maintained there must be a “social contract,” whereby people, who are by nature free and equal, agree to be ruled and have some of their choices limited in order to live harmoniously with others. Those who rule, however, must protect the people's rights and promote the public good.

Locke's ideas were echoed in the opening words of the US Declaration of Independence and its “self-evident” truths that all men are created equal and endowed with certain unalienable rights, including “Life, Liberty and the pursuit of Happiness”; and that to secure these rights, governments should derive their powers from the “consent of the governed.”

Locke also believed in majority rule. This and the consent of the governed would become the central planks of democracy, while both Locke's and Montesquieu's thoughts on the separation of powers were key to shaping the US Congress.

Republic vs. democracy

The Constitution is sometimes seen as the starting point of modern democracy. It begins with the words, “We the People . . .,” but this was not a ringing endorsement of the democratic ideals expressed so stirringly by President Abraham Lincoln in 1865, when he spoke of “government of the people, by the people, for the people.” The Founding Fathers framed the Constitution to be the “supreme Law of the Land” and the basis of

George Washington—the first person to sign the Constitution—is inaugurated as the first US president at Federal Hall, New York City, on April 30, 1789.

